

Court No. - 21

Case :- WRIT - C No. - 5848 of 2021

Petitioner :- Sushil Kumar Verma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rajeev Kumar Saxena

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Sanjay Kumar Pachori, J.

Heard Sri Rajeev Kumar Saxena, learned counsel for the petitioner, Sri Devesh Vikram, learned Standing Counsel for the State-respondents and Sri Baleshwar Chaturvedi, learned counsel for the respondent no.4.

The present petition has been preferred by the petitioner for the following relief:-

"(i) Issue a writ order or direction in the nature of certiorari quashing the impugned the recovery order dated 29.8.2019 passed by the respondent no.4 whereby the recovery of Rs.90,987/- as electricity dues against the petitioner."

Sri Baleshwar Chaturvedi, learned counsel for the contesting respondent has raised a preliminary objection regarding maintainability of the writ petition on the ground that against the impugned order/disputed bills the petitioner has got an efficacious alternative remedy under Clause 6.5 of Uttar Pradesh Electricity Supply Code, 2005 and if the petitioner is not satisfied by the order of the Executive Engineer, he can make a complaint before the Consumer Grievance Redressal Forum in accordance with Clause 7.10 of the Uttar Pradesh Electricity Supply Code, 2005 read with Uttar Pradesh Electricity Regulatory Commission (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2007.

Once efficacious alternative remedy is available to the petitioner then there is no reason or occasion for us to bypass the statutory forum.

The writ petition stands **disposed of** accordingly.

The party shall file computer generated copy of such order downloaded from the official website of High Court Allahabad, self attested by the petitioners along-with a self attested identity proof of the said person (preferably Aadhar Card) mentioning the mobile number to which the said Aadhar Card is linked.

The concerned Court/Authority/Official shall verify the authenticity of such computerized copy of the order from the official website of High Court Allahabad and shall make a declaration of such verification in writing.

Order Date :- 19.2.2021

Ishan